

24STLC05308 24STLC05308

County: los-angeles

Division: Civil Law and Motion

Department: 26

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Case Number: 24STLC05308 Hearing Date: August 24, 2026 Dept: 26

TENTATIVE RULING:

Plaintiff ZB, NA

dba California Bank & Trust's Motion for Attorney's Fees and Costs is granted in the amount of \$13,728.00 attorney's fees and \$1,593.07 costs.

Analysis:

On July 25 2024, Plaintiff ZB, NA

dba California Bank & Trust ("Plaintiff") filed the instant action for breach of contract and declaratory relief against Defendant Ben B. Safyari ("Defendant"). Defendant filed an Answer on October 3, 2024.

Plaintiff filed a Motion for Summary

Judgment, or in the alternative, Summary Adjudication, which the Court granted on December 23, 2025. (Minute Order, 12/23/25.) Pursuant to that order, the Court entered judgment in Plaintiff's favor on March 13, 2026. Notice of the entry of judgment was served on both parties by the clerk on the same day. (Notice of Entry of Judgment, 03/13/26.)

On March 27, 2026, Plaintiff filed a memorandum of costs and the instant Motion for Attorney's Fees and Costs. The Motion was served on Defendant by first-class mail on the same day.

At the initial hearing on June 11, 2026, the Court continued the matter to allow Plaintiff to file and serve supplemental briefing and any necessary declaration regarding the propriety of recovering the attorney's fees incurred with respect to the Small Claims cases. (Minute Order, 06/11/26.) The

Court ordered Plaintiff to file and serve the supplemental papers by June 18, 2026. (Ibid.) At the second hearing on July 16, 2026, the Court continued the matter again with an order for the supplemental declaration to be filed by July 23, 2026.

Plaintiff filed a Memorandum of Costs and Supplemental Declaration on July 20, 2026. No opposition has been filed to date.

Discussion

Plaintiff now moves for an award of attorney's fees in the amount of \$13,728.00 and \$1,593.07 in costs pursuant to Code of Civil Procedure sections 1032 and 1033.5, and Civil Code section 1717. A prevailing party is entitled to recover costs, including attorney's fees when authorized by contract. (Code Civ. Proc., § 1032, subd. (a)(4); § 1033.5, subd. (a)(10)(A).) Civil Code section 1717 provides that reasonable attorney's fees and costs shall be awarded to the prevailing party in an action on a contract, where the contract specifically provides for attorney's fees and costs. (Civ. Code, § 1717, subd. (a).)

A motion for attorney's fees must be filed and served within the time for filing a notice of appeal under Cal. Rules of Court Rule 8.822. (Cal. Rules of Court Rule 3.1702(a).) Cal. Rules of Court Rule 8.822 states that an appeal must be filed within either (1) 30 days after service of the notice of entry of the judgment; or (2) 90 days after entry of the judgment. (Cal. Rules of Court 8.822(1).) The instant Motion was timely filed 11 days after notice of entry of the judgment on both parties.

It is undisputed that Plaintiff is the prevailing party in this action, as the party in whose favor the Court granted summary judgment and for whom judgment has been entered. (See Code Civ. Proc., § 1032, subd. (a)(4).) Accordingly, Plaintiff is entitled to recover its costs under Code of Civil Procedure section 1033.5, subdivision (a). It is also entitled to recover its attorney's fees if such recovery is provided for in the contract at issue. The parties' contract provides for recovery of collection costs, including attorney's fees and legal expenses. (Motion, Exhibit List filed 10/21/25, Exh 1, p. 4 at "Collection Costs".) Therefore, Plaintiff is entitled to recover its attorney's fees in this action as the prevailing party.

Plaintiff's counsel billed its attorneys'

work at \$330.00 per hour, which is a very reasonable billing rate for an attorney in Southern California. (Motion, Supp. Schneider Decl., ¶4.) According to the supplemental supporting declaration, Plaintiff's attorneys billed 40.7 hours on this action. (Id. at ¶4 and Exh. 1.) This time is supported by the billing records of Plaintiff's counsel and is reasonable for an action for breach of a credit agreement, involving a fully briefed motion for summary judgment, entry of judgment, request for costs, and the instant Motion for Attorney's Fees. The Court previously found that Plaintiff had not sufficiently explained why it should be awarded fees for time spent by its counsel on Small Claims proceedings; those entries have now been omitted from the requested fees. (Ibid.) Therefore, the Court finds the fees requested reasonable and necessary to the litigation.

Plaintiff also seeks an award of \$1,593.07 in costs, which are itemized in the attached and filed Memorandum of Costs. Plaintiff seeks costs for filing and motion fees, service of process, electronic filing and service fees, and courtesy copies. (Id. at Exh. 2.) These costs were included in the Memorandum of Costs filed on March 27, 2026, 14 days after entry of judgment in this action. "[T]he items on a verified cost bill are prima facie evidence the costs, expenses and services listed were necessarily incurred." (Hadley v. Krepel (1985) 167 Cal.App.3d 677, 682.) Any motion to strike or tax costs must be served and filed 15 days after service of the memorandum, plus an additional 5 days if served by mail or 2 days if served electronically. (Cal. Rules of Court, rule 3.1700(b)(1).) As no motion to tax the costs sought has been filed, they are also awarded to Plaintiff.

Conclusion

Therefore, Plaintiff ZB, NA dba California Bank & Trust's Motion for Attorney's Fees and Costs is granted in the amount of \$13,728.00 attorney's fees and \$1,593.07 costs.

Moving party to give notice.